

26STCV03602 26STCV03602

County: los-angeles

Division: Civil Law and Motion

Department: 406

Hearing date: 2026-08-12

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C406%2C08%2F12%2F2026

Source SHA-256: a4b44da07045ec2e06a8cb290fa9d50b65dd8eb632b4c2db4e7adaf5d2f04ace

Case Number: 26STCV03602 Hearing Date: August 12, 2026 Dept: 406

SHIN P. YANG,

Plaintiff,

v.

KAZN AM 1300, et al.,

Defendants.

Case No.: 26STCV03602

Hearing Date: August 12, 2026

[TENTATIVE]

order RE:

plaintiff's motion for leave to file

first amended complaint

BACKGROUND

On February 3, 2026, Plaintiff Shin

P. Yang filed this action against Defendants KAZN AM 1300 and Yvonne Liu,

asserting (1) equitable enforcement of oral settlement agreement, (2)

promissory estoppel, and (3) breach of the implied covenant of good faith and

fair dealing.

The dispute originates from an earlier litigation regarding breach of an advertising agreement, *Shin Yang, et al. v. KAZN 1300, et al.* (19STCV11399). During the trial in that earlier action, the parties allegedly reached an oral settlement before the court. The alleged agreement was for Defendants to pay Plaintiff \$250,000 and provide Plaintiff with one year of free radio advertising in exchange for dismissal of the lawsuit. Plaintiff alleges that Defendants have failed to perform their obligations under the settlement agreement.

On July 6, 2026, Plaintiff filed the instant motion for leave to file a first amended complaint. Defendants have not filed an opposition.

LEGAL STANDARD

The court may, in furtherance of justice, and on such terms as may be proper, allow a party to amend any pleading. (Code Civ. Proc, §§ 473(a), 576.) Courts must apply a policy of liberality in permitting amendments at any stage of the proceeding, including during trial, when no prejudice to the opposing party is shown. (*Duchrow v. Forrest* (2013) 215 Cal.App.4th 1359, 1377.) In determining the extent of prejudice to the opposing party, the court must consider various factors, such as whether the amendment would delay trial or increase the discovery burden. (*Demetriades v. Yelp, Inc.* (2014) 228 Cal.App.4th 294, 306.)

A motion for leave to amend a complaint must be accompanied by a declaration that explains: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Ct., Rule 3.1324(b).)

DISCUSSION

The proposed amendment adds a claim for promissory fraud on the grounds that Defendants had no intention to perform the settlement agreement at the time they made the promise. (Carleo Decl. ¶¶ 4-5.) This additional claim stems from the same facts as the original complaint. Defendants have not filed an opposition to articulate any prejudice or other reason for disallowing the amendment. Therefore, amendment is

warranted.

CONCLUSION

Plaintiff's motion for leave to file
first amended complaint is GRANTED.